

26PSCV02059 26PSCV02059

County: los-angeles

Division: Civil Law and Motion

Department: G

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Case Number: 26PSCV02059 Hearing Date: September 24, 2026 Dept: G

Defendant

Hyundai Motor America's Motion to Compel Binding Arbitration

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Defendant

Hyundai Motor America's Motion to Compel Binding Arbitration is DENIED.

BACKGROUND

This

is a Song-Beverly action arising out of the purchase of an allegedly defective motor vehicle. On October 22, 2022, plaintiff Alan Del Rosario (Del Rosario) allegedly bought an SUV manufactured by defendant Hyundai Motor America (HMA).

Del Rosario allegedly brought the SUV to HMA's authorized service and repair facility, but they allegedly failed to repair the vehicle.

On June

11, 2026, Del Rosario filed the Complaint, alleging causes of action for (1) breach of express warranty obligations, (2) breach of implied warranty obligations, (3) unfair business practices, and (4) negligent repair.

On July

20, 2026, HMA filed this motion to compel arbitration, which is unopposed.

The
motion is set for hearing on September 24, 2026.

REQUEST FOR JUDICIAL NOTICE

HMA
requests that the court take judicial notice of the Complaint. The court may take judicial notice of the
records of any California court, including its own. (See Evid. Code, § 452, subd. (d)(1).) Thus, the court takes judicial notice
of the
Complaint.

ANALYSIS

HMA
moves to compel arbitration pursuant to the arbitration provision of the warranty
handbook. For the following reasons, the
motion is DENIED.

Legal Standard

“A
written agreement to submit to arbitration an existing controversy or a
controversy thereafter arising is valid, enforceable and irrevocable, save upon
such grounds as exist for the revocation of any contract.” (Code Civ. Proc., § 1281.) The court must grant a petition to compel
arbitration unless it finds no written agreement to arbitrate exists, the right
to compel arbitration has been waived, grounds exist for revocation of the
agreement, or litigation is pending that may render the arbitration unnecessary
or create conflicting rulings on common issues.
(See Code Civ. Proc., § 1281.2.)

In
a motion or petition to compel arbitration under both California and federal
law, “the moving party bears the burden of producing prima facie evidence of a
written agreement to arbitrate the controversy.” (Gamboa v. Northeast Community Clinic
(2021) 72 Cal.App.5th 158, 165, internal quotation marks omitted.) Once the court finds an arbitration agreement
exists and that the dispute is covered by the agreement, the party opposing

arbitration bears the burden of establishing a defense to enforcement by preponderance of the evidence. (See *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) In interpreting an arbitration agreement, courts apply the same principles used to interpret contractual provisions with the fundamental goal of giving effect to the parties' mutual intentions and applying contractual language if clear and explicit. (See *Valencia v. Smyth* (2010) 185 Cal.App.4th 153, 177.) Because public policy strongly favors arbitration, "any doubts regarding the arbitrability of a dispute are resolved in favor of arbitration." (*Coast Plaza Doctors Hospital v. Blue Cross of California* (2000) 83 Cal.App.4th 677, 686.)

Discussion

The moving party's burden is twofold: first, provide prima facie evidence that an arbitration agreement exists, and second, that agreement applies to the dispute. (See *Rosenthal*, supra, 14 Cal.4th at 413.)

HMA

did not meet its burden of demonstrating that the parties agreed to arbitrate their dispute in the owner's handbook.

HMA provides a "true and correct copy of [the owner's handbook]." (*Ameripour Decl.*, ¶ 4; see *Ameripour Decl.*, Exh. 2.) The owner's handbook states:

If you purchased or leased your Hyundai vehicle in the State of California, you and [HMA] each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, advertising of the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty. . . shall be resolved by binding arbitration. . . . (*Ameripour Decl.*, Exh. 2, section 4, p. 12.)

The

handbook was produced by HMA and evidences its assent to arbitration. (See *Ameripour Decl.*, Exh. 2.) However, there is no evidence that Del Rosario agreed to the arbitration provision in the owner's handbook. Neither his name nor his signature appear in

the handbook, and there is no evidence that Del Rosario agreed to the handbook's contents. (See Ameripour Decl., Exh. 2.) Based on its lacking evidence, HMA fails to meet its burden to demonstrate that it made an agreement to arbitrate with Del Rosario.

Since HMA failed to provide sufficient evidence of an arbitration agreement with Del Rosario, the court need not examine whether this dispute is covered by the arbitration provision or whether there are any defenses to enforcement.

Accordingly,
the motion to compel arbitration is DENIED.

CONCLUSION

For
these reasons, the motion to compel binding arbitration is DENIED.